

Thompson v. Jameson.

12s. 1d., sterling, or the value thereof in Virginia currency, at the rate of exchange in the said decree mentioned, with interest thereon, as awarded by the said decree ; which said decree, in form aforesaid, yet remains in full force and effect, not reversed or satisfied ; by reason whereof, action accrued to the said Jameson & Co. to demand and have from the said Jonah, the said sum of 860*l.* 12s. 1d., sterling, of the value aforesaid. And the said Jameson further avers, that the said Brown, on the ——— day of ———, in the year——, departed this life, to wit, at the county of Alexandria aforesaid, whereby the said cause of action survived to the said Jameson. Nevertheless, the said Jonah, the said sum of 860*l.* 12s. 1d., sterling, of the value aforesaid, or any part thereof, to the said Jameson & Co., in the lifetime of the said Brown, or to the said Jameson, since his death, has not paid, &c.; to the damage of the said Jameson, five hundred dollars, and therefore, he brings suit," &c.

There was an office judgment, at the rules, in November 1801, which was not set aside at the next succeeding court, in January 1802. At April term 1802, the defendant's counsel moved to set aside the office judgment on *pleading *nil debet*. The court being divided on the propriety of that [286 plea to an action founded on the record of a court of one of the states, the plea was not received, and a bill of exceptions was taken by the counsel for the defendant, and signed by the judge who was against the admission of the plea. The pleas of *nil tiel record*, and payment, were then filed, and issues made up, on which the cause went to trial. The verdict upon the issue of payment was in these words : "we of the jury find for the plaintiff the debt in the declaration mentioned, and one cent damages, to be discharged by the payment of \$2544.49.

And the defendant moved in arrest of judgment for the following reasons : 1st. Because the action is brought for sterling money, when it appears by the plaintiff's own showing in the declaration, that the original sterling debt has been changed by the decree of the county court of Fairfax, into the current money of Virginia. 2d. Because the plaintiff in his declaration, declares for a sterling debt, and lays his damages in current money. 3d. Because the jury have found their damages in current money, and have fixed the sum in current money, at which the said sterling debt might be discharged. 4th. Because it doth not appear by the plaintiff's declaration, what was the nature of the defendant's undertaking as security, whether it was by record, by bond, or by parol. 5th. Because the whole proceedings are irregular, informal and erroneous.

These reasons not being deemed sufficient by the court below, judgment was rendered for the plaintiff for "860*l.* 12s. 1d. sterling, of the value of 1032*l.* 14s. 6d., Virginia currency, equal to \$3442.41, United States currency, [287 *the debt in the declaration mentioned, and one cent damages, by the jurors aforesaid, in form aforesaid assessed, and also his costs by him about his suit in this behalf expended ; and the said defendant in mercy, &c. But this judgment (damages and costs excepted) is to be discharged by the payment of \$2544.49." To reverse this judgment, the defendant below sued out the present writ of error.

Swann, for the plaintiff in error. *E. J. Lee* and *Key*, for the defendant.

Swann.—1st. The declaration does not show any obligation on Thompson,